



2025:DHC:203-DB



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* **IN THE HIGH COURT OF DELHI AT NEW DELHI*****Date of decision: 16.01.2025***

+ W.P.(C) 390/2025
ASST COMDT JAVED ALI (RETD)Petitioner
Through: Mr.Ajit Kakkar, Adv.

versus

UNION OF INDIA & ORS.Respondents
Through: Mr.Jagdish Chandra, CGSC,
Ms.Archana Surve, GP,
Mr.Shubham Kr. Mishra. Adv.

CORAM:**HON'BLE MR. JUSTICE NAVIN CHAWLA****HON'BLE MS. JUSTICE SHALINDER KAUR****NAVIN CHAWLA, J. (Oral)**

1. This petition has been filed by the petitioner challenging the Order dated 09.07.2021, passed by the General Security Force Court (in short, 'GSFC') finding the petitioner guilty of charges under Section 21(2) and Section 19 (B) of the Border Security Force Act, 1968, and imposing a punishment of 'to take rank and precedence as if his appointment to the rank of Assistant Commandant bore the date 23.12.2018 instead of 23.12.2013' and 'to be severely reprimanded'.
2. The petitioner has submitted a Post Confirmation Petition dated 02.12.2021 to the respondent no.2, however, the respondent no.2 has failed to dispose of the same.
3. Issue notice.
4. Notice is accepted by Mr. Jagdish Chandra, the learned counsel



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for the respondents.

5. He submits that the Post Confirmation Petition was not decided as in the meantime by an Order dated 06.04.2023, the petitioner in another proceeding of the GSFC had been visited with punishment of dismissal from service.

6. In our view, as the said punishment is in challenge before us in form of a separate petition being W.P.(C) 8859/2023, the respondents must in any case decide the Post Confirmation Petition as far as the present proceedings are concerned.

7. We therefore, direct the respondents to decide on the Post Confirmation Petition of the petitioner within a period of six weeks from today and communicate the decision to the petitioner.

8. In case the petitioner is aggrieved of the same, it shall be open to the petitioner to challenge the same in accordance with the law.

9. The petition is disposed of in the above terms.

NAVIN CHAWLA, J

SHALINDER KAUR, J

JANUARY 16, 2025/Arya/IK

Click here to check corrigendum, if any